



भारतसरकार/Government of India

फलताविशेष आर्थिक क्षेत्र/FALTA SPECIAL ECONOMIC ZONE

वाणिज्यविभाग/Department of Commerce

वाणिज्यऔरउद्योगमंत्रालय/Ministry of Commerce & Industry

निजामपैलेस, दूसराएमएसओभवन, चौथीमंजिल/Nizam Palace, 2nd MSO Building, 4th Floor

234/4 एजेसीबोसरोड, कोलकाता-700 020/ 234/4 AJC Bose Road, Kolkata-700 020;

टेलीफोन /Phone:2287-2263,2287-7923,2281-3117; फैक्स /Fax : (033)2287-3362;

ईमेल /Email: fsez@nic.in; वेबसाइट /Website: http://fsez.gov.in



Falta SEZ

No.FSEZ/LIC/M-49/2011/686

Date: 06.09.2023

SHOW CAUSE NOTICE

WHEREAS, M/s. MP Industries having their registered office at 147, Mahatma Gandhi Road, Kolkata-700007 had been permitted vide Letter of Approval No. FSEZ/LIC/M-49/2011/1873 dated 10.08.2011 for manufacture and export of Panel - 700000.00 Dozens & Umbrella - 300000 Dozens in Falta Special Economic Zone;

WHEREAS, the unit has submitted a Bond-cum- Legal Undertaking No.FSEZ/B-LUT/147/11-12 dated 01.11.2011, which has been accepted by this office vide letter No.FSEZ/LIC/M-49/2011/3258 dated 02.11.2011.

WHEREAS the Letter of Approval No. FSEZ/LIC/M-49/2011/1873 dated 10.08.2011 of the unit, **M/s.MP Industries**, has expired on **30.01.2023** and the unit has not applied for extension of validity period of LOA. The LOA is deemed lapsed w.e.f. **31.01.2023**.

WHEREAS in terms of Rule 19 (6) of SEZ Rules, 2006, the Letter of Approval shall be valid for 05 (five) years from the date of commencement of production. As per 19(6A)(1) the Units which intend to renew the validity of Letter of Approval shall submit before two months from the date of expiry of the Letter of Approval in Form F1. Provided in case an application is submitted after the said period of two months, reasonableness of the delay shall be examined on the merits and circumstances of the case. In case of non-compliance of the procedures specified in clause 19 (6A)(1), the Letter of Approval shall not be considered for renewal.

WHEREAS the unit, **M/s.MP Industries**, in spite of this office reminder dated 19.04.2023, has not applied for renewal of LOP. The matter was placed before the 166th UAC Meeting held on 25.08.23 for non-compliance of SEZ Act and Rules. After deliberation, Committee decided to Show Cause the unit as to why the Letter of Approval should not be cancelled w.e.f. 31.01.2023 under Section 16 of SEZ Act 2005 for contravention of SEZ Acts and Rules.

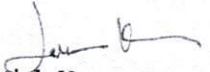


THEREFORE, the unit, **M/s.MP Industries** is hereby asked to explain as to why the Letter of Approval should not be cancelled from the date of its lapse i.e. **31.01.2023** in terms of Rule 16 of SEZ Act, 2005 for violating the provisions of Rule 19(6A) of SEZ Rules, 2006, Point No.(x) of the LOA FSEZ/LIC/M-49/2011/1873 dated 10.08.2011 and the condition of the Bond-cum- Legal Undertaking submitted by the unit.

Whereas, the unit may file their written reply within **10** days from the date of issue of this notice and if they wish to be heard in person, they may say so within this period after prior appointment with the undersigned, failing which action as deemed fit may be taken ex-parte on the basis of records available before this office.

Whereas, it may please be noted that these are quasi-judicial proceedings and therefore, personal hearing will be allowed only to the Directors, if they are not in a position to appear for sufficient and valid reasons, they may depute an employee of the firm or any other functionary directly connected with their concern, who has intimate knowledge and full facts of the case. They may, if they so desire, also be represented by a practicing advocate. Such employee/functionary/practicing advocate should submit their forwarding letter and special power of attorney on stamp paper duly executed in his favour authorizing him to appear in these particular proceedings and statement/submissions/depositions made will be legally binding upon the firm/concern.

This issues without prejudice to any other actions that may be taken against the said firm under any other Rules/Law in force.


(Satish Kumar)

Development Commissioner

To

M/s. M.P. Industries,
147, Mahatma Gandhi Road,
Kolkata - 700007
[Email:-mpindfalta@gmail.com]



Copy to:-

- i. Secretary, FSEZ Authority, Falta SEZ with the request to take necessary action, if any rental dues are pending.
- ii. Specified Officer, FSEZ

जारी किया / ISSUED

हस्ताक्षर / SIGNATURE

दिनांक / DATE 06/09/2023



भारतसरकार/Government of India
 फलताविशेष आर्थिक क्षेत्र/FALTA SPECIAL ECONOMIC ZONE
 वाणिज्यविभाग/Department of Commerce
 वाणिज्यऔरउद्योगमंत्रालय/Ministry of Commerce & Industry
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F.No.FSEZ/LIC/M-49/2011/1405

Dated: 15.02.2024

To

M/s. M.P. Industries,
 147, Mahatma Gandhi Road,
 Kolkata - 700007

Sub:- Non-reply of the SCN dated 06.09.2023 issued for non-renewal of LOA by M/s. M.P. Industries, a manufacturing unit in Falta SEZ, holding LOA No. FSEZ/LIC/M-49/2011/1873 dated 10.08.2011 – regarding

Sir,

I am directed to refer to this office SCN No.FSEZ/LIC/M-49/2011/686 dated 06.09.2023 (copy enclosed) on the above mentioned subject and state that till date this office has not received any reply from your end.

Further, vide this office letter of even No.1054 dated 05.12.2023 (copy enclosed), the unit has been requested to submit their APR for the FY 2022-23. However, till date, the APR for the FY 2022-23 has not been submitted by you. Our office also telephonically contacted you on 23.01.2024 wherein the above issues were intimated to you.

In this regard, it is requested to immediately submit the reply to the above SCN dated 06.09.2023 and submit your APR for the FY 2022-23. It is also submitted that whereas the unit wishes to be heard in person, it may do so after prior appointment with DC, FSEZ.

Yours faithfully,

Signed by Parthasarathi

Ghosh

Date: 15-02-2024 17:00:18

(Parthasarathi Ghosh)

Dy. Development Commissioner



Encl.: As above.

Copy to: (1) The Specified Officer, FSEZ

(2) The Secretary, FSEZ Authority